PANJAB UNIVERSITY, CHANDIGARH

(Estted. under the Panjab University Act VII of 1947-enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

POSTGRADUATE DIPLOMA
IN
HUMAN RIGHTS AND DUTIES
(SEMESTER SYSTEM)
(THROUGH UNIVERSITY SCHOOL OF OPEN LEARNING)
EXAMINATIONS, 2015-16

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PANJAB UNIVERSITY, CHANDIGARH

Outlines of tests, syllabi and courses of reading for Postgraduate Diploma in Human Rights and Duties (through University School of Open Learning) for the semester examination December 2015 and April-May 2016.

Papers for Semester I Papers (I-IV)	**Title of the paper**	**Code**	**Written Exam Marks**	**Written Assignment based Internal Assessment Marks**	**Total Marks**
Paper – I	Fundamentals of Human Rights and Duties	DHR 01	80	20	100
Paper –II	Human Rights Theory and Practice : International Scenario	DHR 02	80	20	100
Paper-III	Human Rights Theory and Practice : The Indian Context	DHR 03	80	20	100
Paper-IV	Research Methodology	DHR 04	80	20	100
Papers for Semester II Papers (V-VIII)	**Title of the paper**		**Written Exam Marks**	**Written Assignment based Internal Assessment Marks**	**Total Marks**
Paper-V	Human Rights : Development Discourse and Problems	DHR 05	80	20	100
Paper-VI	Human Rights : International and Regional Mechanisms	DHR 06	80	20	100
Paper-VII	Human Rights Movements in India	DHR 07	80	20	100
Paper-VIII	Field Based Project Work	DHR 08	80 (To be submitted in typed form)	20 (Viva Voce/ Project Report Presentation in lieu of written Assignment)	100

INSTRUCTIONS FOR PAPER SETTERS AND PROJECT REPORT EVALUATORS:

1. Marks for written papers: Maximum Marks 80 for each paper and 20 Marks each for written assignment. Field Based Project Work Marks: 100 (80 for the Project Report and 20 for Viva Voce/ Report Presentation)
2. The emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

ADDITIONAL INFORMATION

1. Examination time allowed for attempting theory papers is 3 hours for each paper.
2. The marks allotted to the written assignments received for each paper may be treated as the internal assessment in the Seven theory papers (Papers I – VII)
3. In the case of Paper VIII (Field Based Project Work), the maximum marks for the Project Report would be 80 and the 20 marks allotted to Viva Voce/Report presentation will be in lieu of the internal assessment.

PAPER – I: FUNDAMENTALS OF HUMAN RIGHTS AND DUTIES
(Code No. DHR 01)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, **all of which have to be attempted**. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

Objectives: The paper seeks, a) to introduce the students to the basic concepts of human rights and duties; b) to acquaint them with the evolutionary and theoretical perspectives of human rights; c) to familiarize them about the development debate; and d) to inform them about the general problems relating to human rights.

UNIT – I

- Basic concepts: Rights, Duties
- Nature of Rights: absolute/ reasonable; universal/relativistic; discriminatory/ justifiably differential.

UNIT – II

- Classification of rights and duties: **Rights**, moral, social, cultural, economic, civil and political; **Duties**: towards self, family, community, society, nation/state, humankind and mother earth
- Interrelationship of rights and duties

UNIT – III

- Historical evolution: Tracing the History of the development of the concept of Human Rights prior and up to the Universal Declaration of Human Rights (1948).

UNIT – IV

- Perspectives : Natural Rights
  Legal / Positivist
  Liberal
  Marxist

Essential Readings:

- Clapham, A. (2007), *Human Rights: A Very Small Introduction*, New Delhi: Oxford University Press.
- Freeman, Michael (2003), *Human Rights: An Interdisciplinary Approach,* Cambridge: Polity Press.
- Jaswal, P.S. & Jaswal, N (1996), *Human Rights and the Law*, New Delhi: APH Publishing Corporation.
- Malhotra, S. et al. (2005), *Human Rights: Emerging Issues*, New Delhi: Kilaso Books.
- Parekh, P.H. (2005), *Human Rights Year Book*, New Delhi: Universal Law Publishing Co.
- Rehman, M.N. et. al. (2000), *Human Rights and Human Development*, *Concepts and Contexts*, New Delhi, Manak Publications.
- Reichert, Elisabeth (2003), *Social Work and Human Rights – A Formation of Policy and Practice*, Jaipur : Rawat Publication.
- Sachs, Aaron (1995), *Eco-Justice: Linking Human Rights and the Environment,* Washington Worldwitch Institute.
- Talwar, P. (2006), *Human Rights,* New Delhi: Isha Books.

Further Readings:

- Gandhi, M.K. (1948), *The Message of the Gita,* Ahmedabad: Navjivan Publishing House.
- Gandhi, M.K. (1948), *Non-Violence in Peace and War*, Ahmedabad: Navjiwan Publishing House.
- Prabhu, R.K. and Rao, U.R. (1996), *The Mind of Mahatma Gandhi*, Ahmedabad: Navjiwan Publishing House.
- Shelton, D. (ed.). (2013), *The Oxford Handbook of International Human Rights Law,* UK: Oxford University Press.
- Zarsky, Lyuba (ed.) (2002), *Human Rights and Environment,* London: Earthscan Pub.

PAPER – II: HUMAN RIGHTS THEORY AND PRACTICE: INTERNATIONAL SCENARIO
(Code No. DHR 02)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, **all of which have to be attempted**. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

Objectives: The paper provides the description of a) international standards; b) international mechanisms; and c) human rights practice in the international context.

UNIT – I

- The UN Charter
- The Universal Declaration of Human Rights (1948)

UNIT – II

- International Covenant on Civil and Political Rights (1966) and Optional Protocol
- International Covenant on Social, Cultural and Economic Rights (1966) and Optional Protocols

UNIT – III

- International Convention on Elimination of All Forms of Racial Discrimination (ICERD) (1965)
- Convention on Elimination of All Forms of Discrimination Against Women (CEDAW) (1979)

UNIT – IV

- Convention on the Rights of Child (CRC) (1989)
- Convention on Prevention and Punishment of the Crime of Genocide

Essential Readings:

- Agarwal, H.O. (2013), 19th edn., *International Law and Human Rights*, Allahabad: Central Law Agency.
- Kapoor, S.K. (2014), 19th ed., *International Law and Human Rights,* Allahabad: Central Law Agency.
- Ramcharan, B.G. (1979), *Human Rights: Thirty Year After Universal Declaration*, London: Martinus Publications.
- Stephen, Rev. M, (2002), Human *Rights, Concepts and Perspectives*, New Delhi: Concept Publishing Company.
- Mishra, Anil Dutta (ed.) (2002), *Perspectives on Human Rights*, New Delhi: Radha Publications.
- Rhone, K.M. Smith and Christian Van Den Anker (eds.), *The Essentials of Human Rights*, New York: Oxford University Press.
- Smith, R. (2013), 6th edn., *Textbook on International Human Rights,* UK: Oxford University Press.
- Shelton, D. (2013) (ed.), *The Oxford Handbook of International Human Rights Law*, UK: Oxford University Press.

Further Readings:

- Batra, T.S. (1979), *Human Rights: A Critique*, New Delhi: Metropolitan.
- Baxi, Upendera (1994), *The Future of Human Rights,* New Delhi: Har Anand Publications.
- Elliott Julia, Knights, Anne and Cowley Chris (ed.) (2006), *Oxford Dictionary and Thesaurus Part III*, New Delhi: Oxford University Press.

PAPER – III: HUMAN RIGHTS THEORY AND PRACTICE: THE INDIAN CONTEXT (Code No. - DHR 03)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, **all of which have to be attempted**. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

Objectives: The paper a) traces the origin and development of human rights in India; b) discusses the constitutional-legal framework in India; c) describes the enforcement and redress agencies; and d) analyzes the human rights issues in the Indian context.

UNIT – I

- Rights Discourse in Indian National Movement
- Making of the Constitution and Human Rights Concerns

UNIT – II

- Fundamental Rights and Fundamental Duties
- Directive Principles of State Policy

UNIT – III

- Role of Judiciary : Independence of judiciary, judicial review, judicial activism
- State of Human Rights in Contemporary India with special reference to custodial deaths and torture

UNIT – IV

- National Human Rights Commission (NHRC)
- National Commission for Women (NCW)
- National Commission on Protection of Child Rights (NCPCR)

Essential Readings:

- Alam, Aftag (2005), *Human Rights in India*, Delhi: Raj Publishing House.
- Austin, Granville (2002), *Working of a Democratic Constitution: The Indian Experience*, New Delhi: Orient Longman.
- Noorani, A.G. (2012), South Asian Human Rights Documentation Centre: *Challenges to Civil Rights Guarantees in India,* New Delhi: Oxford University Press.
- Ray, Arun (2009), *National Human Rights Commission in India: Formation, Functioning and Future Prospects,* New Delhi: Atlantic.
- Chitkara, M.G. (1996), *Human Rights Commitment and Betrayal*, Ajit Publishing Corporation.
- Singla, Nidhi, "Forgotten Youth: Disability and Development in India" A Paper presented, University of Cambridge.
- Tyne, Claude H. Van (1990), *India Freedom Movement*, Delhi: Akashdeep Publishing House.

Further Readings:

- Kannabiran, K.G. (2003), *The Wages of Impurity: Justice and Human Rights*, New Delhi: Orient Longman.
- Ray, S.N. (1974), *Judicial Review and Fundamental Rights*, Calcutta: Eastern Law House.
- Sathe, S.P. (2009), *Judicial Activism in India*, New Delhi: OUP.
- Fadia B.L. and Fadia K., *India in Administration*, Agra: Sathiya Bhawan Publication.

PAPER – IV: RESEARCH METHODOLOGY
(Code: DHR -04)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, **all of which have to be attempted**. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

UNIT – I

- Social Science Research: Meaning, objectives, characteristics and motivation in research
- Types of Social Science Research: Qualitative Research, Quantitative Research

UNIT – II

- Methods of Research: Observation, Interview, Questionnaire, Schedule

UNIT – III

- Research Problems: Meaning, Selection of Problems and Techniques involved in defining a problem
- Research Design: Meaning, Need for Research Design and Important Concepts relating to Research Design

UNIT – IV

- Writing Research Report: Meaning, Types of Reports, Steps in writing report and Techniques of Interpretation

Essential Readings:

- Ghosh, B.N. (1992), *Scientific Methodology Social Research*, New Delhi: Sterling Publishers Private Limited.
- Goode, William J, and Hatt, Paul, K (1981), *Method in Social Research*, New York: McGraw-Hill Book Company.
- Hyman, Herbert H. et al. (1975), *Interviewing in Social Research*, Chicago: University of Chicago Press.
- Kothari, C. R. (2004), *Research Methodology: Method and Techniques*, New Delhi: New Age International (P) Limited Publishers.
- Mukerjee, Partha Nath (2002), *Methodology in Social Science*, New Delhi: Saga Publications.
- Ackoff, Russell L (1961), *The Design of Social Research*, Chicago: University of Chicago Press.
- Sharma, B.A.V. et. al. (1983), *Research Methods in Social Sciences*, New Delhi: Sterling Publishers Pvt. Ltd.
- Tirn, May (2009), *Social Research, Issues Methods and Process*, Jaipur : Rawat Publications.

Further Readings:

- Bharati, M. (1995), *Methodology in Social Enquiry: A Marxist Perspective*, University of Hyderabad.
- Miller, Delbert C (1977), *Handbook of Research Design and Social Measurement* (3rd ed.), New York: David McKay Company, Inc.
- UN (2000), Centre for Human Rights, *Human Rights Training: A Manual on Human Rights Training Methodology,* New York: UN.
- UN (1991), *Centre for Human Rights: A Manual of Human Rights Reporting,* New York: World Campaign for Human Rights.

SEMESTER II

PAPER – V: HUMAN RIGHTS: DEVELOPMENT DISCOURSE & PROBLEMS
(Code No. DHR – 05)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, all of which have to be attempted. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

UNIT – I

- The Development Discourse : New Economic Policies
- The Impact of Globalization on Human Rights

UNIT – II

- Alternative models/critique of development:
    - Modernization and its Neo-Marxist critique
    - Gandhian model of development
    - Feminists' critique of development

UNIT – III

- Human Rights Concerns-I:
    - Poverty, Illiteracy and Discrimination: Caste and Class
    - Gender based discrimination: Patriarchy, Female Feticide, Domestic Violence

UNIT – IV

- Human Rights Concerns-II:
    - Terrorism
    - Ecological degradation
    - Rights of Indigenous People

Essential Readings:

- Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.
- Dube, M.P. and Bora, Neeta (ed.) (2000), *Perspectives on Human Rights*, New Delhi: Anamika Publishers.

- Sanajaoba, N (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.
- Vadkar, Praveen (2000), *Concepts, Theories and Practices of Human Rights,* New Delhi: Rajat Publications.

Further Readings:

- Parekh, P.H. (2005/6) *Human Rights Year-Book 2005,* New Delhi: Universal Law Publishing Co.
- Rehman, M.M. et al. (2000), *Human Rights and Human Development: Concepts and Contexts,* New Delhi: Manak Publications.
- Zarsky, Lyuba (ed.) (2002), *Human Rights and the Environment,* London: Earthscan Pub.

PAPER VI: HUMAN RIGHTS: INTERNATIONAL & REGIONAL MECHANISMS
(Code No. DHR-06)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, all of which have to be attempted. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

UNIT – I

- The UN Office of the High Commissioner on Human Rights
- The Human Rights Council

UNIT – II

- Statute of the International Court of Justice (ICJ)
- Rome Statute of the International Criminal Court (ICC)

UNIT – III

- The European Convention on Human Rights
- The American Convention on Human Rights

UNIT – IV

- African Charter on Human and People's Rights
- The Arab Commission on Human Rights

Essential Readings:

- Alston, Phillip, ed. (1992), *The United Nations and Human Rights:* A Critical Appraisal, Oxford: Clarendon Press.
- Cook, Rebecca, J (ed.) (1994), *Human Rights of Women*, Philadelphia: University of Pennisylynnia Press.
- Langley, Winstone E. (1999), *Encyclopedia of Human Rights Issues since 1945* London: Fitzory Dearborn Publishers.
- Peters, Julie W.A. (1995), *Women's Human Rights: International Feminist Perspective*, New York: Routlege.
- Verma, R.S. (2000), *Human Rights*: *Burning Issues of the World,* Volumes I, II and III, Delhi: Radiant Publishers.
- Roberton, A.H. (1999), *Human Rights in Europe: Being an account of the European Convention for the Protection of Human Rights*, Manchester: University Press.

Further Readings:

- Lauterpacht, Hersch (1945), *An International Bill of the Rights of Man,* New York: Columbia University Press.
- Neyns, Cled (2004), *Human Rights in Africa*, The Hague: Martinus Nijhoo.
- Morsink, Johannes (1999), *The Universal Declaration of Human Rights, Origins, Drafting and Intent,* Philadelphia: University of Pennsylvania Press.
- Murray, R (2000), *African Commission on Human and People's Rights and International Law,* New Delhi: Hart Publishing.
- Vijapur, A.P. (1996), *The United Nations at Fifty: Studies in Human Rights,* New Delhi: South Asian Publishers.

PAPER – VII: HUMAN RIGHTS MOVEMENTS IN INDIA
(Code No. DHR -07)

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.
2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, all of which have to be attempted. (2x10 = 20 marks)
3. The remaining essay type questions (questions 2-9) must comprise two questions from each unit with internal choice. (4x15 = 60 marks)

4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties.

UNIT – I

- Civil Society Initiative / Safeguards of Human Rights: Meaning and Role
- Evolution of Human Rights Movements in India

UNIT – II

- Women's Movement
- Environmental Movement for Sustainable Development

UNIT – III

- Dalit Movement
- Tribal Movement
- Naxals' Movement

UNIT – IV

- Peasants' Movement
- Trade Union Movement

Essential Readings:

- Austin, Granville (2000), *Working of a Democratic Constitution: The Indian Experience,* New Delhi: Oxford University Press.
- Eide, Asbjorn (1986), "Human Rights Movement and the Transformation of International Order", *Alternatives*, Vol.11, No.3, pp.367-402.
- Kannabiran, K.G. (2003), *The Wages of Impunity: Power, Justice and Human Rights,* New Delhi: Orient Longman.
- Karna, G. N. (2000), "Disability Rights Movement: Conceptual Framework and Its Implications for India", *Disabilities and Impairments*, Vol.14, No.1, pp.15-22.
- Kaushik, Vijay (1999), *Women's Movements and Human Rights,* Jaipur: Pointer Publishers.
- Kothari, Smitu (1990), "Human Rights Movement in India: A Critical Overview", *Social Action*, Vol.40, No.1, pp.1-15.
- Oommen, T.K (ed.) (2010), *Social Movements I: Issues of Identity*, New Delhi: OUP.
- Oommen, T.K (ed.) (2010), *Social Movements II: Concerns of Equity and Security,* New Delhi: OUP.
- Shah, Ghanshyam (2004), *Social Movements in India*, New Delhi: Sage.

Further Readings:

- Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: OUP.
- Kothari, Smitu and Harsh Sethi (ed.) (1991), *Rethinking Human Rights: Challenge for Theory and Action,* Delhi: Lokayan.
- Bhatia, K. L. (1997), *Judicial Review and Judicial Activism: A Comparative Study of India and Germany from an Indian Perspective*, New Delhi: Deep & Deep Publication.
- Jain, Mahaveer (1997), *Bonded Labour, Justice Through Judiciary*, New Delhi: Manak Publication.
- Khosla, Sunil (2008), *Judicial Activism in India: Problems and Prospects,* Chandigarh: Arun Publishing House.

PAPER – VIII: FIELD BASED PROJECT WORK
(DHR – 08)

Maximum Marks: = 100 marks
Project Report = 80 marks
Viva Voce/Report Presentation = 20 marks

NOTE: The emphasis of this course is not to test the legal knowledge / accuracy of the candidates but to assess their basic understanding of Human Rights and Duties

Each candidate is required to take up a project based on fieldwork, which will carry 100 marks.

Candidates have the liberty to select any topic related to human rights issues, violations, enforcement etc. and may conduct the research/fieldwork in the geographical area of their choice.

For successful completion of the diploma, each candidate is required to submit a typed project report on a given date and present the same before an examiner at the end of the course.

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